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CASE #	CASE NAME	HEARING NAME
CVSW2106883	RODRIGUEZ VS COUNTY OF RIVERSIDE	MOTION TO DISMISS COMPLAINT

Tentative Ruling: Grant Defendant County of Riverside’s motion to reinstate and dismiss with prejudice. The Proposed Order submitted on August 10, 2026, is approved.

This case alleges elder abuse. Plaintiffs Dan Rodriguez (“Dan”) and Gabriel Rodriguez (“Gabriel”) (collectively, “Plaintiffs”) are the sons and successors-in-interest of Decedent Petra Matwyuk (the “Decedent”), who was 73 years old and enrolled in Defendant County of Riverside’s (the “County”) In-Home Supportive Services (“IHSS”) program. (Compl. ¶¶ 1–4, 7.) Defendant Magdalena Sierra (“Sierra”) was assigned by the County and its Department of Public Social Services (“DPSS”) to provide in-home care to the Decedent one to two days a week for approximately 39 hours per month between December 2019 and February 2021. (*Id.* ¶ 20.)

In late December 2020, Sierra allegedly told Plaintiffs she had tested positive for COVID-19 and Plaintiffs told her to discontinue her visits. (*Id.* at ¶ 21.) Nonetheless, in early January 2021, Plaintiffs allegedly found her performing her usual duties in the home without a mask, after which the Decedent grew rapidly weaker. (*Id.* ¶ 22.) On January 25, 2021, Plaintiffs found the Decedent unresponsive on the bathroom floor and she was rushed to the Temecula Valley Hospital. (*Id.* at ¶ 23.) She died on February 10, 2021, from complications of COVID-19. (*Id.* ¶ 24.)

On August 9, 2021, Plaintiffs filed the operative Complaint against the County, DPSS, and Sierra (collectively, “Defendants”), asserting nine causes of action including elder abuse, willful misconduct, negligence, wrongful death, and violation of the UCL. On October 13, 2021, the County filed an Answer to the Complaint, denying each allegation of the Complaint and asserting multiple affirmative defenses. (Headlee Decl. ¶ 2.)

On March 8, 2022, the County served written discovery and noticed Plaintiffs’ depositions for May 11, 2022. (*Id.* at ¶ 3.) When Plaintiffs failed to respond, the County filed motions to compel on July 7, 2022. (*Id.* at ¶ 4.) On July 29, 2022, Plaintiffs’ counsel moved to be relieved because of Plaintiffs’ unresponsiveness, which the Court granted on October 10, 2022. (*Id.* at ¶ 5.) No substitute counsel appeared and Plaintiffs proceeded in *pro per*. (*Id.* at ¶ 5.) The Court granted the motions to compel on March 20, 2023, ordering verified responses, without objections, within 30 days. (*Id.* at ¶ 6.) No responses were served. (*Id.* at ¶ 7.)

The County re-noticed Plaintiffs’ depositions for May 2 and May 3, 2023, and Plaintiffs again failed to appear. (*Id.* at ¶¶ 8–9.) Facing an October 6, 2023 trial date and a pending motion for terminating sanctions, the County filed an ex parte application to continue trial, which was heard on June 7, 2023. (*Id.* at ¶ 11.) At that hearing, Gabriel appeared in person for himself and on behalf of Dan, and requested that the Court vacate all dates and place the case in an indefinite stay pending Plaintiffs’ retention of counsel. (*Id.* at ¶¶ 12–13, Ex. A.) The Court expressly admonished Plaintiffs that the matter had to be brought to trial by August 9, 2026, or they would be barred under CCP § 583.310. (*Id.*) According to the County, there has been no activity in this case since June 7, 2023. (*Id.* at ¶ 14.)

The County moves to dismiss under the five-year mandatory dismissal statute, CCP § 583.310, arguing that Plaintiffs filed their Complaint on August 9, 2021, abandoned prosecution before March 2022 by ignoring discovery, missing depositions, and prompting their own counsel to withdraw, and never reengaged after the Court's June 7, 2023 order vacated all dates and admonished them to bring the matter to trial by August 9, 2026. The County emphasizes that the June 7, 2023 stay was not a tolling order but a docket-holding measure, that the case remains far from trial ready, and that further delay would be severely prejudicial.

Gabriel, appearing in *pro per*, opposes dismissal on two grounds: (1) the Court's June 7, 2023 indefinite stay statutorily tolls the five-year clock under CCP §§ 583.340(b) and (c), and (2) complete abandonment by prior counsel, immense grief over the Decedent's death, and the hardships of navigating complex litigation *pro se* rendered timely prosecution impossible or impracticable. Invoking California's strong policy favoring resolution on the merits, Gabriel asks the Court to deny the motion and either grant a three to six-month continuance to complete discovery or set an immediate trial date.

In reply, the County responds that the tolling and impossibility exceptions require reasonable diligence, which Plaintiffs have not shown. According to the County, Plaintiffs sat out more than three years of the stay, ignored granted motions to compel, skipped noticed depositions, and reappeared only after the deadline lapsed, without any supporting declaration substantiating their claimed hardships. The County reiterates that the June 7, 2023 order expressly warned that trial had to occur by August 9, 2026, and was never intended to toll the statute. The County further argues that Plaintiffs abandoned their own counsel rather than the reverse, and that *pro per* Gabriel cannot oppose the motion on behalf of Dan, who has therefore waived opposition.

An action must be brought to trial within five years of commencement against the defendant. (CCP § 583.310.) If a plaintiff misses that deadline, dismissal is "mandatory" and "not subject to extension, excuse, or exception except as expressly provided by statute." (CCP § 583.360(b).) The Court must order dismissal on its own motion or on defendant's motion, after notice to the parties. (CCP § 583.360(a).)

Two statutory tolling provisions may excuse the delay. First, section 583.340(b) excludes "the time during which . . . [p]rosecution or trial of the action was **stayed** or enjoined." (CCP § 583.340(b) [emphasis added].) This exclusion is a "bright-line, nondiscretionary rule that excludes from the time in which a plaintiff must bring a case to trial only that time during which all the proceedings in an action are stayed," and thus "governs only complete stays that are 'used to stop the prosecution of the action altogether.'" (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 726, 730.) A partial stay of specific proceedings does not trigger automatic tolling under section 583.340(b). (*Id.* at 730.) The label used by the trial court is not dispositive. (*Gaines v. Fidelity Nat'l Title Ins. Co.* (2016) 62 Cal.4th 1081, 1094.) "What matters is whether the order is functionally in the nature of a stay, which implicates the legislative purposes behind tolling the five-year period, or whether it is functionally in the nature of a continuance, which does not." (*Id.* at 1092.) A "stay" in this context refers to "those postponements that freeze a proceeding for an indefinite period, until the occurrence of an event that is usually extrinsic to the litigation and beyond the plaintiff's control." (*Id.*)

Second, section 583.340(c) excludes any time during which "[b]ringing the action to trial, for any other reason, was **impossible, impracticable, or futile**." (CCP § 583.340(c) [emphasis added].) The plaintiff bears the burden of proving that the exception applies. (*Bruns, supra*, 51

Cal.4th at 731.) The Court must weigh “all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves,” and “[t]he critical factor in applying these exceptions to a given factual situation is whether the plaintiff exercised reasonable diligence in prosecuting his or her case.” (*Id.* at 730 [internal quotation omitted].) “‘Impracticability and futility’ involve a determination of ‘excessive and unreasonable difficulty or expense,’ in light of all the circumstances of the particular case.” (*Id.* at 731 [internal quotation omitted].) Tolling requires “‘a period of impossibility, impracticability or futility, *over which plaintiff had no control*,’ because the statute is designed to prevent avoidable delay.” (*Gaines, supra*, 62 Cal.4th at 1102 [italics in original].) “[E]very period of time during which the plaintiff does not have it within his power to bring the case to trial is not to be excluded in making the computation. [Citations.] Time consumed by the delay caused by ordinary incidents of proceedings . . . [is] not within the contemplation of these exceptions.” (*Id.* at 1101 [internal quotation marks & citations omitted].) The plaintiff must also show “a causal connection to the failure to move the case to trial, and that he or she was ‘reasonably diligent in prosecuting the case at all stages of the proceedings.’” (*Bruns, supra*, 51 Cal.4th at 731 [internal quotation omitted].)

The five-year clock began on August 9, 2021, when Plaintiffs filed the Complaint. (Headlee Decl. ¶ 2.) Absent a statutory exclusion, the case had to be brought to trial by August 9, 2026. (CCP § 583.310.) No trial has occurred, and written discovery, depositions, and expert work remain incomplete. Dismissal is therefore mandatory unless one of the exclusions in CCP § 583.340 applies. (CCP § 583.360.) The requirements of section 583.360 are “mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (CCP § 583.360(b).) Gabriel asserts two exclusions.

“Stay” Under CCP § 583.340(b): Gabriel contends that the Court’s June 7, 2023 order placed the case in an “indefinite stay” that “statutorily tolls the five-year period under Code of Civil Procedure section 583.340, subdivisions (b) and (c).” (Pl.’s Opp. 1:26–2:5.) The County responds that the June 7, 2023 order was not intended to toll the statute as the Court expressly admonished Plaintiffs that the “matter must be brought to trial before 08/09/2026,” and directed that Plaintiffs “will be barred from doing so” if they missed that deadline. (Headlee Decl. ¶ 13, Ex. A.) First, it is the Court’s custom and practice is to grant a stay of a case *only* when the Plaintiff requests the stay to avoid fast-track and discovery timelines and possible sanctions due to being unprepared. Though not noted in the minutes, the stay was granted *at Plaintiff’s request* and the court admonished Plaintiff that the matter would need to be brought to trial before August 9, 2026.

Section 583.340(b) excludes time during which “[p]rosecution or trial of the action was stayed or enjoined.” (CCP § 583.340(b).) Its scope is narrow. The exclusion is “a bright-line, nondiscretionary rule that excludes from the time in which a plaintiff must bring a case to trial only that time during which all the proceedings in an action are stayed.” (*Bruns, supra*, 51 Cal.4th at 726.) It “governs only complete stays that are ‘used to stop the prosecution of the action altogether.’” (*Id.* at 730.) And the label the trial court used is not determinative — what matters is “whether the order is functionally in the nature of a stay, which implicates the legislative purposes behind tolling the five-year period, or whether it is functionally in the nature of a continuance, which does not.” (*Gaines, supra*, 62 Cal.4th at 1092.) A “stay” tolls the period when it “freeze[s] a proceeding for an indefinite period, until the occurrence of an event that is usually extrinsic to the litigation and beyond the plaintiff’s control.” (*Id.*)

The June 7, 2023 order has two features that cut in opposite directions. On one hand, it was styled as an indefinite stay “pending Plaintiffs retaining counsel,” it vacated all dates, and it left the case in abeyance until Plaintiffs acted to “resurrect” the matter. (Headlee Decl. ¶ 13, Ex. A.) On the other hand, the Court’s own minute order simultaneously reset the deadline by directing that “Plaintiffs must bring this matter to trial before August 9, 2026, otherwise they will be barred from doing so.” (*Id.*) That express calendaring of the five-year date is inconsistent with an intent to toll. When a trial court’s own order tells the plaintiff to bring the case to trial by a date certain, it is “functionally in the nature of a continuance,” not a stay that “freeze[s] a proceeding” until an extrinsic event occurs. (*Gaines, supra*, 62 Cal.4th at 1092.) Nor was the triggering event—retention of counsel—“extrinsic to the litigation and beyond the plaintiff’s control” as obtaining new counsel was uniquely within Plaintiffs’ control. (*Id.*) On balance, the Court’s June 7, 2023 order was a case management continuance conditioned on Plaintiffs securing counsel, coupled with an express admonition that the five-year statute remained live. It did not “stop the prosecution of the action altogether” within the meaning of section 583.340(b). (*Bruns, supra*, 51 Cal.4th at 730.)

“Impossibility, Impracticability, or Futility” Under CCP § 583.340(c): Gabriel alternatively invokes section 583.340(c), arguing that “total abandonment” by prior counsel, “severe personal hardship” following the Decedent’s death, and the difficulties of navigating complex litigation as pro se litigants made timely prosecution impossible or impracticable. (Pl.’s Opp. 2:2–5.) The County responds that Plaintiffs waited more than three years after the stay to re-engage, failed to oppose earlier motions to compel, skipped noticed depositions, and submitted no declaration substantiating hardship.

The governing framework is settled. Section 583.340(c) excludes time during which “[b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile.” (CCP § 583.340(c).) Gabriel bears the burden. (*Bruns, supra*, 51 Cal.4th at 731.) The Court weighs “all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves,” and “[t]he critical factor in applying these exceptions to a given factual situation is whether the plaintiff exercised reasonable diligence in prosecuting his or her case.” (*Id.* at 730.) Gabriel must show “‘a period of impossibility, impracticability or futility, *over which plaintiff had no control*,’ because the statute is designed to prevent avoidable delay.” (*Gaines, supra*, 62 Cal.4th at 1102 [italics in original].) And “‘[t]ime consumed by the delay caused by ordinary incidents of proceedings . . . [is] not within the contemplation of these exceptions.’” (*Id.* at 1101.) Impracticability requires a showing of “‘*excessive and unreasonable difficulty or expense*,’” together with “a causal connection to the failure to move the case to trial, and that [Gabriel] was ‘reasonably diligent in prosecuting the case at all stages of the proceedings.’” (*Bruns, supra*, 51 Cal.4th at 731 [italics in original].)

Measured against that standard, the record before the Court reflects long stretches of inactivity rather than diligence. Plaintiffs’ counsel’s motions to be relieved as counsel represented that Plaintiffs, Gabriel in particular, had stopped communicating with counsel as early as May 2022, before counsel withdrew and before the stay issued. (*See* Notice of Motions to be Relieved as Counsel, dated July 29, 2022.) (Evid. Code § 452(d).) Plaintiffs did not respond to written discovery served in March 2022, did not oppose the motions to compel filed in July 2022, did not serve the verified responses ordered by the March 20, 2023 order compelling production, and did not appear for their May 2 and May 3, 2023 depositions. (Headlee Decl. ¶¶ 3–9.) After the June 7, 2023 order, Plaintiffs undertook no record activity in the case for more than three years, reappearing only after the County moved to dismiss. (*Id.* at ¶ 14.) Plaintiffs have offered no

declaration attesting to the efforts they made, if any, to retain new counsel, to obtain hardship accommodations, or to prosecute the case *pro se* during that period.

Gabriel invokes the trauma of the Decedent's death, the difficulty of *pro se* litigation, and prior counsel's withdrawal as the equities justifying tolling. These are serious human circumstances, but on this record they do not, standing alone, satisfy the statute's causation and diligence requirements. (*See Bruns, supra*, 51 Cal.4th at 730–31.) Attorney withdrawal and *pro se* status are, in the ordinary case, “delay caused by ordinary incidents of proceedings,” not the kind of extrinsic impossibility the statute contemplates. (*See Gaines, supra*, 62 Cal.4th at 1101.) And Plaintiffs' lack of activity did not begin with counsel's withdrawal. The record reflects that, according to Plaintiffs' counsel's motions to be relieved as counsel, Gabriel “began to refuse to speak with Plaintiff's counsel and Plaintiff's counsel's office employees” around May 2022, before counsel moved to be relieved and well before the June 7, 2023 stay. (Def.'s Reply 4:3–11; Notice of Motion to be Relieved as Counsel, dated July 29, 2022.) Nothing in the record shows that Plaintiffs made “every reasonable effort to bring [the] case to trial within five years, even during” the stay. (*Jordan v. Superstar Sandcars* (2010) 182 Cal.App.4th 1416, 1420.) Gabriel accordingly has not carried his burden under section 583.340(c), and no time is excluded from the five-year period on that basis as to Gabriel.

Waiver of Dan Rodriguez's Opposition: The County argues that because Gabriel alone signed and filed the Opposition, and California law bars a *pro per* litigant from representing another party, Dan has waived Opposition to the motion. Bus. & Prof. Code § 6125 provides that “[n]o person shall practice law in California unless the person is an active member of the State Bar.” (Bus. & Prof. Code § 6125.) “[T]he general rule has been that, although persons may represent themselves and their own interests regardless of State Bar membership, no one but an active member of the State Bar may practice law for another person in California.” (*Birbrower, Montalbano, Condon & Frank v. Sup. Ct.* (1998) 17 Cal.4th 119, 127 [*“Birbrower”*].) “A violation of section 6125 is a misdemeanor.” (*Id.*; Bus. & Prof. Code § 6126(a).) Applied here, Gabriel may prosecute the case on his own behalf but may not appear “for or on behalf of” Dan. (*Id.*) The Opposition's caption names both Plaintiffs “in *pro per*,” but the signature block is signed only by “GABRIEL RODRIGUEZ, Plaintiff Pro Se,” and the accompanying certificate of signature confirms Gabriel as the sole signatory. (Pl.'s Opp. pp. 4–5.) Dan did not personally sign the Opposition, submit a declaration, or otherwise appear in opposition to the motion. The mere inclusion of Dan's name in the caption is not sufficient to constitute his own opposition. On this record, the Opposition is Gabriel's alone, and Gabriel cannot oppose the motion on Dan's behalf without violating section 6125. (*Birbrower, supra*, 17 Cal.4th at 127.) Therefore, the Court finds that Dan has not opposed the motion, and the section 583.340(b) and (c) analysis above applies to Dan independently, with the added reason that he made no showing at all.